

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF NEW YORK

MARC M. MOSZKOWSKI,

Plaintiff,

v.

DECISION AND ORDER

DAVID L. RUMSEY, ESQ.; RUSTIN R.
HOWARD; DEEPGULF, INC.; and JOHN
DOES 1-10,

6:26-CV-06015 EAW

Defendants.

Pro se plaintiff, Marc M. Moszkowski (“Plaintiff”), filed this action on January 6, 2026, asserting claims pursuant to the Racketeer Influenced and Corrupt Organizations Act, 18 U.S.C. §§ 1961-1968, and state law claims for fraud, civil conspiracy, abuse of process, unjust enrichment, and tortious interference with business and economic opportunities. (Dkt. 1). Plaintiff did not pay the filing fee or submit an application to proceed *in forma pauperis* (“IFP”) with his complaint and on January 14, 2026, the Court administratively terminated the action and permitted Plaintiff to reopen the case by filing a complete application to proceed IFP or pay the filing fee. (Dkt. 2).

On January 15, 2026, Plaintiff filed a motion to proceed IFP. (Dkt. 4). Plaintiff’s IFP motion does not provide the Court with sufficient information to assess his financial situation. Because he has failed to answer questions regarding his total monthly expenses, other people’s contributions, and if he has anyone who depends on him for support his motion is incomplete and prevents the Court from assessing his ability to pay. For this

reason, the Court denies Plaintiff's IFP motion and grants him 30 days to file an amended IFP motion or pay the filing fee. Plaintiff's remaining motions (Dkt. 5; Dkt. 7) are denied without prejudice.

DISCUSSION

A party seeking to bring a civil action in federal court ordinarily must pay a \$350 filing fee, 28 U.S.C. § 1914, and an administrative fee of \$55.¹ *See Lockridge v. Erie Cnty. Med. Ctr.*, No. 18-CV-815, 2019 WL 5788082, at *1 (W.D.N.Y. Nov. 5, 2019). But a litigant may ask to avoid the fees by moving for leave to proceed IFP. 28 U.S.C. § 1915(a)(1); *Humphrey v. U.S. Army Corps of Eng'rs*, No. 21-CV-1901 (RPK) (LB), 2021 WL 1837791, at *1 (E.D.N.Y. May 7, 2021) (“The federal *in forma pauperis* statute allows indigent litigants to file lawsuits without prepaying the filing fees”).

Whether to grant a motion for IFP status is a matter within the Court's discretion. *Potnick v. E. State Hosp.*, 701 F.2d 243, 244 (2d Cir. 1983); *see also Fair v. Mnuchin*, No. 6:20-CV-0244 (GLS/ML), 2020 WL 2543589, at *1 (N.D.N.Y. Apr. 15, 2020) (advising “that the ability to litigate an action without prepayment of fees is a privilege that can be denied, revoked, or limited based upon a showing of prior abuses”), *report and recommendation adopted*, 2020 WL 2543046 (N.D.N.Y. May 19, 2020). In exercising this discretion, the Court “must determine whether the burden of paying the fees for filing and service would either hamper the petitioner's ability to obtain the necessities of life or force

¹ *See* <https://www.uscourts.gov/services-forms/fees/district-court-miscellaneous-fee-schedule>.

him to abandon the action.” *Singer v. Cuscovitch*, No. 07-CV-578 (SRU), 2007 WL 1810085, at *1 (D. Conn. May 14, 2007).

The Court may deny IFP status when the information in the motion is incomplete. *Basta v. Comm’r of Soc. Sec.*, No. 21-CV-0896 (JMA), 2021 WL 1108667, at *1 (E.D.N.Y. Mar. 23, 2021) (denying IFP where the motion was “incomplete and raise[d] more questions than it answer[ed]”); *Davis v. NYS Dep’t of Lab.*, No. 21-CV-690 (JLS), 2021 WL 9455716, at *2 (W.D.N.Y. June 28, 2021) (denying IFP where the plaintiff listed no income and did not explain how she paid her expenses).

Plaintiff’s motion states that he is not employed and his monthly income consists of \$1,023 a month from pensions, annuities, disability, or life insurance payments. (Dkt. 4 at ¶¶ 2(c), 3). He has left blank the questions asking him about his monthly expenses, the people in his household and what they contribute, and what he pays to support any dependents. (*Id.* at 2 ¶¶ 9-11). He also did not describe in detail the real estate, stocks, bonds, notes, automobiles, or other valuable property identified. (*Id.* at ¶ 8). Because Plaintiff omitted pertinent information, the Court finds that his IFP motion does not provide sufficient information to assess his ability to pay the costs of litigation and is denied. Plaintiff’s remaining motion for electronic filing privileges (Dkt. 5) and motion seeking a Court ruling on his complaint (Dkt. 7) are denied without prejudice to renew should he pay the filing fee or submit a complete IFP application.

CONCLUSION

Because Plaintiff has not met his burden of establishing indigence based on the present record, his motion to proceed IFP (Dkt. 4) is denied without prejudice to submitting

an amended motion. His motion for electronic filing privileges (Dkt. 5) and for immediate ruling (Dkt. 7) are denied without prejudice. At this point, the Court has not screened the complaint for sufficiency. If Plaintiff is able to obtain IFP status, the Court will then be required to assess the merits of Plaintiff's complaint pursuant to 28 U.S.C. §1915 before the litigation will be able to move forward.

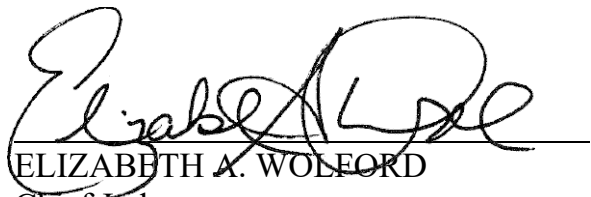
If Plaintiff wishes to proceed without prepayment of fees, he must submit an amended motion establishing that he qualifies to proceed IFP no later than 30 days from the date of this Order. His amended motion must contain complete and accurate responses to each question on the form.

Alternatively, Plaintiff may pay the \$405 filing fee to the Clerk of Court of the Western District of New York no later than 30 days from the date of this Order.

If Plaintiff does not submit an amended IFP motion or remit the filing fee by **thirty days from the date of this Order**, this action will be dismissed without prejudice, and the Clerk of Court shall close this case without further order of the Court.

The Clerk of Court is directed to send to Plaintiff with this order a blank non-prisoner form motion to proceed IFP.

SO ORDERED.


ELIZABETH A. WOLFORD
Chief Judge
United States District Court

Dated: August 10, 2026
Rochester, New York